



CHAPTER lxxxi.

An Act to constitute and incorporate a joint board consisting of representatives of the urban district councils of Kingsbridge and Salcombe with power to construct works for intercepting and distributing the waters of the Bala Brook and for other purposes. A.D. 1930.

WHEREAS the urban districts of Kingsbridge and Salcombe in the county of Devon are urban sanitary districts within the meaning of the Public Health Act 1875 and urban districts within the meaning of the Local Government Act 1894 and are respectively under the management and control of the urban district council of Kingsbridge (in this Act called "the Kingsbridge Council") and the urban district council of Salcombe (in this Act called "the Salcombe Council"):

And whereas under the provisions of the Public Health Acts each of the councils is supplying water within its district from local sources but the existing sources of supply which entail pumping and the existing works of the councils are inadequate and it would be of local and public advantage if a water board (in this Act referred to as "the Board") consisting of representatives of the Kingsbridge Council and the Salcombe Council were constituted as in this Act provided and the Board were empowered to obtain a gravitation supply of water from the Bala Brook on Brent Moor and for that purpose to acquire lands and to make and maintain the works described in this Act and to supply the water derived therefrom to the said councils in bulk:

[Ch. lxxxi.] *Kingsbridge and* [20 & 21 GEO. 5.]
Salcombe Water Board Act, 1930.

A.D. 1930. And whereas the purposes of this Act cannot be
— effected without the authority of Parliament :

And whereas an estimate has been prepared for the
purpose hereinafter mentioned and such estimate is as
follows :—

For the purchase of land and for and in	£
connection with the construction of	
the waterworks authorised by this	
Act - - - - - -	63,000

And whereas the several works included in such
estimate are permanent works and it is expedient that the
cost thereof should be spread over a term of years :

And whereas plans and sections showing the lines
and levels of the works authorised by this Act and also
a book of reference containing the names of the owners
and lessees or reputed owners and lessees and of the
occupiers of the lands required or which may be taken
for the purposes or under the powers of this Act were
duly deposited with the clerk of the peace for the county
of Devon which plans sections and book of reference are
in this Act respectively referred to as the deposited plans
sections and book of reference :

And whereas in relation to the promotion of the Bill
for this Act the requirements of the Borough Funds Acts
1872 and 1903 have been observed by the Kingsbridge
Council and the Salcombe Council :

May it therefore please Your Majesty that it may be
enacted and be it enacted by the King's most Excellent
Majesty by and with the advice and consent of the Lords
Spiritual and Temporal and Commons in this present
Parliament assembled and by the authority of the same
as follows :—

PART I.

PRELIMINARY.

Short title. 1. This Act may be cited as the Kingsbridge and
Salcombe Water Board Act 1930.

Division 2. This Act is divided into Parts as follows :—

of Act into
Parts,

Part I.—Preliminary.

Part II.—Establishment constitution and
proceedings of Board.

Part III.—Waterworks.

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Part IV.—Lands.

Part V.—Apportionment and supply of
water.

Part VI.—Supply of water by constituent
authorities.

Part VII.—Financial and miscellaneous pro-
visions.

3. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are incorporated with and form part of this Act (that is to say):—

Incorporation of Acts.

The provisions of the Commissioners Clauses Act 1847 with respect to the following matters (namely):—

The contracts to be entered into and the deeds to be executed by the commissioners;

The liabilities of the commissioners and legal proceedings by or against the commissioners;

Access to the special Act;

The Lands Clauses Acts except section 127 of the Lands Clauses Consolidation Act 1845 relating to the sale of superfluous lands:

Provided that the bond required by section 85 of the said Act of 1845 shall be under the common seal of the Board and shall be sufficient without the addition of the sureties mentioned in that section;

The provisions of the Waterworks Clauses Acts 1847 with respect to the following matters (that is to say):—

The construction of waterworks;

Mines;

The breaking up of streets for the purpose of laying pipes;

The provision for guarding against fouling the water of the undertakers;

The provisions of the Waterworks Clauses Act 1863 with respect to the security of the reservoirs constructed by the undertakers;

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The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway.

Interpretation.

4.—(1) The several words and expressions to which meanings are assigned by the Acts partially incorporated herewith shall in this Act have the same respective meanings unless there be something in the subject or context repugnant to such construction. Provided that for the purposes of this Act—

In the provisions of the Commissioners Clauses Act 1847 incorporated with this Act “ the commissioners ” means the Board;

And in this Act unless the subject or context otherwise requires—

“ The Board ” means the Kingsbridge and Salcombe Water Board incorporated by this Act;

“ The clerk ” means the clerk to the Board;

“ The Kingsbridge Council ” means the Kingsbridge Urban District Council;

“ The Salcombe Council ” means the Salcombe Urban District Council;

“ The councils ” and “ the constituent authorities ” mean the Kingsbridge and Salcombe Councils and “ constituent authority ” means one of those councils;

“ The Lands Clauses Acts ” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 and by this Act;

“ The undertaking ” means the undertaking of the Board authorised by this Act;

“ The Public Health Acts ” means the Public Health Act 1875 and the Acts amending and extending the same;

“ The tribunal ” means the tribunal or other authority to whom any question of disputed purchase money or compensation under this Act is referred in pursuance of the Acquisition of Land (Assessment of Compensation) Act 1919;

“ Statutory security ” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed

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authorised to invest trust money and any mortgage bond debenture debenture stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Board;

“ Statutory borrowing power ” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;

“ The revenues of the Board ” includes the revenues of the Board from time to time arising from the undertaking or from any land or other property for the time being belonging to the Board and the money receivable by them from the constituent authorities and all rates and money which they are authorised to levy and collect within the districts of the constituent authorities under the powers of this Act.

(2) For the purposes of this Act the expressions “ the promoters of the undertaking ” “ the company ” and “ the undertakers ” in the Lands Clauses Acts the Railways Clauses Consolidation Act 1845 and the Waterworks Clauses Acts 1847 and 1863 shall be construed to mean the Board and the expression “ the railway ” shall be construed to mean so much of any aqueduct conduit line or lines of pipes by this Act authorised as shall not be constructed in a highway and “ the centre of the railway ” shall be construed to mean so much of such aqueduct conduit line or lines of pipes as aforesaid.

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PART II.

ESTABLISHMENT CONSTITUTION AND PROCEEDINGS OF
BOARD.

Incorporation of Board.

5. For the purposes of carrying this Act into execution there shall be a Board of ten members constituted and appointed as by this Act provided and they and their successors from time to time appointed and acting in pursuance of this Act shall be a body corporate under the name and style of "the Kingsbridge and Salcombe Water Board" with perpetual succession and a common seal and with power to sue and be sued and to purchase take hold lease and dispose of lands (without any licence in mortmain) and other property for the purposes of this Act and with all other powers and privileges of a body corporate.

Constitution of Board.

6.—(1) The constitution of the Board shall be as follows:—

Five members to be elected by the Kingsbridge Council from amongst the members thereof; and

Five members to be elected by the Salcombe Council from amongst the members thereof.

(2) On the application of either of the constituent authorities the Minister of Health may at any time after giving notice of the application to the other constituent authority and considering any objections or representations made by them by order alter the number and proportion of members to be appointed by the constituent authorities or either of them and may by such order alter the total number of members of the Board and may make any provisions incidental to or consequential on such alteration including an alteration in the number of members to form a quorum.

Appointment of members of Board.

7.—(1) The first appointment of members of the Board by each constituent authority shall take place at a meeting of the constituent authority to be held within six weeks after the passing of this Act or within such further time as the Minister of Health shall allow on the application of either of the constituent authorities and the members so appointed shall subject to the provisions of this Act continue in office for such period not being less than one year as the constituent authority by

whom they are appointed shall determine but not beyond the thirtieth day of April one thousand nine hundred and thirty-three. A.D. 1930.
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(2) Each constituent authority shall at a meeting to be held within one month after the thirty-first day of March in every year or at a special meeting to be held with special notice of the object of such meeting appoint such members as may be necessary in order to bring the number of members appointed by them up to the number of members of the Board whom they are by this Act authorised to appoint to hold office for such period not being less than a year nor more than three years as they may determine.

8. If either constituent authority fail to appoint first members of the Board or to fill any vacancy as by this Act provided it shall be competent nevertheless for the other members of the Board to carry this Act into execution and if either constituent authority fail subsequently to appoint members or a member of the Board at the proper time for their appointment the then existing members or member of the Board representing such authority and qualified to be members or a member of the Board shall continue in office till their or his successors or successor are or is appointed. Provisions where failure to appoint members.

9. A person shall not be qualified to be a member of the Board unless he is a member of the constituent authority by whom he is appointed. Members of Board to be members of constituent authorities.

10. A person who is a member of both constituent authorities shall not be qualified to represent more than one of them and if the same person shall be appointed a member of the Board by more than one constituent authority he shall choose under which appointment he shall serve and the other appointment shall be deemed void. Member of both authorities to represent one only.

11.—(1) If a member of the Board ceases to be a member of the constituent authority by whom he has been appointed or becomes disqualified he shall cease to be a member of the Board except in the case where he only ceases to be a member of such authority by rotation and is forthwith re-elected a member of such authority. Disqualification of members.

(2) A person shall be disqualified for being appointed or being a member of the Board if he—

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- (a) holds any paid office under the Board save as permitted by this Act; or
- (b) is concerned in any bargain or contract entered into with the Board or participates in the profit of any such bargain or contract or of any work done under the authority of the Board :

Provided that a person shall not be disqualified for being appointed or being a member of the Board by reason of being interested—

- (a) in the sale or lease of any lands or in any loan of money to the Board or in the supply of water by the Board to him as a consumer or the hire or purchase from the Board by him as a consumer of water of the Board of meters fittings or apparatus;
- (b) in any newspaper in which any advertisement relating to the affairs of the Board is inserted; or
- (c) in any bargain or contract with the Board as a shareholder in any company but no such person shall vote at any meeting of the Board on any question in which such company are interested.

Certificate
 of appoint
 ment of
 members.

12. Whenever an appointment of a member of the Board has been made the clerk of the constituent authority by whom the appointment was made shall by writing under his hand certify the appointment to the Board and shall forthwith on the first appointment transmit the certificate to the clerk to the Salcombe Council and on every subsequent appointment to the clerk and every such certificate shall be conclusive evidence of such appointment.

Resignation
 of members.

13. Any member of the Board may at any time resign his office as such member by writing addressed to the clerk.

Removal of
 members.

14. Any member of the Board may be removed at any time by resolution of the constituent authority by whom he was appointed.

Member to
 vacate
 office if
 absent.

15. If any member is absent from meetings of the Board for more than six months consecutively except for some reason approved by the Board he shall on the expiration of that period vacate his office.

16. Where any member becomes disqualified for holding office or vacates his office by absence or otherwise or is removed from office the Board shall forthwith declare the office to be vacant and shall notify the fact to the constituent authority by whom he is appointed in such manner as the Board think fit.

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Notice of
vacancies.

17. If any member of the Board dies or resigns or is disqualified or ceases to be a member of the Board the constituent authority by whom he was appointed may at any time after the happening of such vacancy appoint another person to be a member of the Board in his place who shall continue in office only so long as the person in whose place he is appointed would have been entitled to continue in office.

Casual
vacancies.

18.—(1) Subject to the provisions of this Act the term of office of chairman of the Board shall be one year.

Chairman
of Board.

(2) At their first meeting and subsequently at their annual meeting in each succeeding year the Board shall appoint one of their members as chairman and another as vice-chairman for the ensuing year.

(3) A chairman or vice-chairman may if otherwise qualified be reappointed and shall continue in office until his successor is appointed unless he dies or resigns or becomes disqualified or ceases to be a member of the Board before the appointment of his successor.

(4) On a casual vacancy occurring in the office of chairman or vice-chairman by reason of death resignation disqualification absence or otherwise another member shall be appointed in his place to hold office until the time when the person in whose place he is appointed would regularly have gone out of office.

19. The Board shall hold their first meeting at such place and on such day and at such time as may be agreed between the constituent authorities or as failing such agreement shall be appointed for the purpose by the Minister of Health and subsequent meetings of the Board (including their annual meetings) shall be held at such places on such days and at such times as the Board may from time to time appoint provided that the Board shall hold their annual meeting within fourteen days after the thirtieth day of April in every year.

First and
subsequent
meetings
of Board.

- A.D. 1930. **20.** The chairman or any three or more members of the Board may at any time by writing addressed and sent to the clerk require a special meeting to be convened and the clerk shall convene a meeting accordingly.
- Special meetings of Board.
- Convening of meetings. **21.** The meetings of the Board shall be convened by the clerk of the Salcombe Council until the Board have appointed a clerk and afterwards by the clerk and every meeting shall be convened by circular delivered to each member of the Board or sent by post to or delivered at his residence two clear days at least before the day of the meeting.
- Quorum of meetings. **22.** To constitute a meeting of the Board there must be present not less than five of the members of the Board.
- Proceedings at meetings. **23.**—(1) At every meeting of the Board the chairman or in his absence the vice-chairman or in the absence of both chairman and vice-chairman some member of the Board chosen by the members present shall preside.
(2) Every question at a meeting of the Board shall be decided by a majority of the votes of the members present and voting on that question and in the case of an equality of votes on any question the person presiding at the meeting shall have a second or casting vote.
- Minutes of meetings. **24.**—(1) Minutes of the proceedings of every meeting shall be drawn up and fairly entered in a book kept for that purpose or printed and kept in the form of a book and copies of or prints of such minutes shall after each meeting be forwarded by the clerk to the clerk of each constituent authority and the minutes shall be signed by the chairman or other member presiding at the next ensuing meeting.
(2) A minute of the proceedings of the Board or of a committee of the Board signed at the next ensuing meeting by a member of the Board describing himself as or appearing to be chairman of the meeting at which the minute is signed shall be received in evidence without further proof.
(3) Until the contrary is proved every meeting whereof a minute has been so made shall be deemed to have been duly convened and held and all the members of the meeting shall be deemed to have been duly qualified and where the proceedings are proceedings of a com-

mittee the committee shall be deemed to have been duly A.D. 1930.
constituted and to have had power to deal with the
matters referred to in the minutes. —

25. Subject to the provisions of this Act the Board may make standing orders for the regulation of their proceedings and business and of the proceedings and business of committees of the Board and vary or revoke the same. Standing orders of Board.

26. The Board may appoint out of their own body such and so many committees either of a general or special nature consisting of such number of persons as they think fit for any purposes which in the opinion of the Board would be better regulated and managed by means of committees and may delegate with or without any restrictions or conditions as they may think fit any of their powers or duties (except any power of raising money or of issuing any precept for contributions) to any committee of the Board so appointed. The provisions of section 82 of the Local Government Act 1888 with respect to proceedings of committees of county councils shall apply to committees of the Board as if they were committees of a county council. Committees of Board.

27. The Board may from time to time appoint and remunerate a clerk an engineer a treasurer an accountant and such other officers clerks and servants as they from time to time think requisite and all officers clerks and servants so appointed shall be removable by the Board at their pleasure. No member of the Board or of either of the constituent authorities shall be an officer of the Board but the same person may be and continue an officer of the Board and of a constituent authority. Appointment of officers.

28. No act or proceeding of the Board shall be questioned on account of any vacancy in their body or on account of any defect in the appointment of any member of the Board. Acts not invalidated.

29. If at any time the boundaries of the district of either of the constituent authorities are altered or the whole or any part of them is created or included in a municipal borough then and in every such case the Minister of Health may by order to be published as he shall direct make such provision as to him seems fit for adapting the provisions of this Act to the alterations Provision in event of alteration of districts.

A.D. 1930, — so made and to the incidents and consequences thereof and every such order shall notwithstanding anything contained in this Act to the contrary have effect as if the terms thereof were inserted in this Act but the Minister of Health shall not make such an order until he has held a local inquiry on the subject of which notice has been given by advertisement or otherwise as the Minister of Health may direct and an opportunity has been given to any person who appears to the said Minister to be affected of stating any objections he may have thereto.

Arbitration. 30. If at any time any difference arises between the Board and either of the constituent authorities respecting any matter arising out of the provisions of this Act the same shall be referred to arbitration in the manner provided by the Public Health Act 1875 the provisions of which shall apply with the necessary modifications as if the Board or a constituent authority (as the case may be) were a party within the meaning of those provisions.

PART III.

WATERWORKS.

Power to make waterworks. 31.—(1) Subject to the provisions of this Act the Board may wholly in the county of Devon and in the lines and situation and upon the lands delineated on the deposited plans and described in the deposited book of reference make and maintain the following works shown on the deposited plans and sections (that is to say):—

Work No. 1 An intake and weir wholly in the parish of South Brent to be constructed across the Bala Brook at a point 52 chains or thereabouts measured in a direct line in a north-westerly direction from the confluence of that brook and the river Avon;

Work No. 2 A conduit or line or lines of pipes (No. 1) commencing in the said parish of South Brent in Work No. 1 and terminating in the parish of Loddiswell in Work No. 4 hereinafter described;

Work No. 4 A tank or service reservoir situate wholly in the parish of Loddiswell in the enclosure No. 1030 on the $\frac{1}{2500}$ Ordnance map Devonshire sheet CXXVI—14 (edition of 1906);

Work No. 5 A conduit or line or lines of pipes (No. 2) commencing in the said parish of Loddiswell in Work No. 4 and terminating in the urban district of Salcombe in the existing service tank of the Salcombe Council; A.D. 1930.

Work No. 6 A conduit or line or lines of pipes (No. 3) commencing in the parish of Churchstow by a junction with Work No. 5 (Conduit No. 2) at the junction of the road from Loddiswell to Kingsbridge with Sorley Lane and terminating in the parish of Buckland Tout Saints in Work No. 7 hereinafter described;

Work No. 7 A tank or service reservoir wholly in the said parish of Buckland Tout Saints in the enclosure No. 324 on the $\frac{1}{2500}$ Ordnance map Devonshire sheet. CXXXII—11 (edition of 1906);

Work No. 8 A conduit or line or lines of pipes (No. 4) commencing in the parish of Buckland Tout Saints in Work No. 7 and terminating in the urban district of Kingsbridge by a junction with the existing main of the Kingsbridge Council at Bell Cross;

Work No. 9 A conduit or line or lines of pipes (No. 5) wholly in the parish of West Alvington commencing by a junction with Work No. 5 at the cross roads 32 chains or thereabouts east of Heddiswell Cross and terminating in the existing service tank of the Kingsbridge Council at West Alvington.

(2) In addition to the foregoing works the Board may upon the said lands make and maintain all such tanks filter beds overflows shafts tunnels adits bores aqueducts culverts conduits mains drains banks telegraphs telephones and other subsidiary works engines machinery plant buildings and apparatus as may be necessary or convenient in connection with or subsidiary to the before-mentioned works or any of them but nothing in this subsection shall exonerate the Board from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them.

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Limits of
deviation.

32. In the construction of the works authorised by this Act the Board may deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plans and where in any street or road no such limits are shown the boundaries of such street or road shall be deemed to be such limits and they may also except where any of the said works will pass over or under the railway of any railway company in which case no such vertical deviation shall be made without the consent of the company deviate vertically from the levels shown on the deposited sections to any extent not exceeding five feet upwards and to any extent downwards:

Provided that except for the purpose of crossing over a stream no part of the pipes shall be raised above the surface of the ground unless and except so far as is shown on the deposited sections.

Power to
take waters.

33. Subject to the provisions of this Act the Board may collect impound take use divert and appropriate for the purposes of their waterworks or for any purposes of this Act the waters of the Bala Brook and its tributaries and all such springs streams and waters as may be intercepted by the intake and weir (Work No. 1) authorised by this Act or as may be situate or flowing upon any of the lands shown on the deposited plans as within the limit of land to be acquired for such works.

Period for
completion
of works.

34.—(1) If the works authorised by this Part of this Act are not completed within the period of five years from the thirty-first day of December one thousand nine hundred and thirty then on the expiration of that period the powers by this Act granted for the making thereof or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

(2) Provided that the Board may extend enlarge alter reconstruct renew or remove any of their works and plant and in the case of the conduits or lines of pipes authorised by this Act lay down additional lines of pipes as and when occasion may require.

Restrictions
on taking
water.

35.—(1) The Board shall not take any water from the Bala Brook by means of Work No. 1 by this Act authorised except when water is flowing in the brook immediately below the said Work No. 1 at a rate of not

less than two hundred and twenty-five thousand gallons in twenty-four hours. A.D. 1930.

(2) The Board shall not in any one day of twenty-four hours upon which water is abstracted take from the said Bala Brook a greater total quantity of water than four hundred thousand gallons except in case of emergency when the total quantity taken shall not exceed five hundred thousand gallons.

(3) For the purpose of measuring the quantity of water taken by the Board from time to time under the provisions of this Act and for the purpose of measuring the quantity of water which by this section the Board are required to permit to pass down the said brook the Board shall before taking diverting or appropriating any such water erect and maintain at or near Work No. 1 by this Act authorised proper and sufficient automatically recording measuring gauges meters or orifices over or through which respectively the waters so taken diverted or appropriated and the waters so flowing shall pass.

(4) The said gauges and meters and the records obtained by means thereof shall be open to the examination of all persons interested in the flow of the said brook including the Avon (Devon) Fishery Board or their duly accredited representatives and such persons or representatives as aforesaid may take copies of the said records if they so desire.

(5) The design of the said gauges or meters shall be such as may be agreed between the Minister of Agriculture and Fisheries and the Board or as failing such agreement shall be determined by an engineer to be appointed by the President of the Institution of Civil Engineers on the application of either the said Minister or the Board.

(6) If after commencing to take water from the said brook the Board shall be guilty of any breach of any of the provisions of this section they shall for every day on which such breach occurs forfeit and pay to each of the persons injuriously affected by such breach (including the Avon (Devon) Fishery Board) who shall sue for and recover the same the sum of five pounds and shall in addition make compensation for any loss or injury sustained by any such person.

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(7) Before commencing to take water from the Bala Brook or its tributaries by means of the works by this Act authorised the Board shall pay to the Minister of Agriculture and Fisheries the sum of five hundred pounds to be applied by him in conserving and improving the fisheries of the district.

(8) The Board shall be relieved of any obligation or liability under section 19 of the Salmon and Freshwater Fisheries Act 1923 to provide attach and maintain a fish pass or fish passes or similar apparatus in connection with any works by this Act authorised.

Board may
provide
gauges.

36.—(1) The Board may provide place and maintain at any point or points in the Bala Brook and above or below the intake authorised by the section of this Act of which the marginal note is “ Power to make water-works ” such gauges and other apparatus for measuring the flow of the brook as they may consider necessary.

(2) The said gauges shall be erected and maintained to the approval of the Minister of Agriculture and Fisheries and in such manner as to interfere as little as reasonably possible with the natural flow of the said brook and with the passage of fish up and down the said brook.

(3) If any difference arises between the Board and the Avon (Devon) Fishery Board or any person interested therein with respect to the state of repair or condition of any gauge such difference shall be referred to the arbitration of an engineer to be nominated unless otherwise agreed on the application of either of them by the President of the Institution of Civil Engineers.

Byelaws for
preventing
pollution
of water.

37.—(1) The Board may make byelaws for preventing the pollution fouling or contamination of the water which they are authorised to take for the purposes of any of their waterworks and may by such byelaws prescribe the construction maintenance and use of proper drains sewers and works and make provision for the prevention of any act or thing tending to pollution of the water.

(2) The byelaws made under this section shall be in force within the parish of South Brent or within so much of that parish as may be defined in the byelaws.

(3) In addition to the requirements of section 184 of the Public Health Act 1875 the Board shall exhibit in some conspicuous place in the said parish copies of the notice referred to in that section and any landowner who may be affected by any such byelaws shall be entitled to be furnished with a copy thereof and to oppose the confirmation thereof. A.D. 1930.
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(4) A copy of any such byelaws shall be sent to the clerk of the county council of Devon and to the clerk to the Totnes Rural District Council one month at least before application is made for their confirmation and before confirming the byelaws the Minister of Health shall have regard to any representations thereon which may be made within the said month by the said county council or the said rural district council.

(5) The provisions of sections 182 to 185 of the Public Health Act 1875 so far as they apply to byelaws made by an urban sanitary authority shall apply to all byelaws made by the Board under the powers of this section.

(6) The Board shall pay compensation to the owners of and other persons interested in any lands in respect of which byelaws shall be made under the provisions of this section whose legal rights shall be injuriously affected by the restrictions imposed by such byelaws or who are required by such byelaws to construct any works or to do any act or thing which could not lawfully be required by the local sanitary authority of the district in which such lands are situate and such compensation shall be settled in default of agreement by arbitration in accordance with the provisions of the Arbitration Act 1889.

(7) Notwithstanding anything in section 253 of the Public Health Act 1875 proceedings for the recovery of any penalty imposed by any byelaw made under this section may be taken by the Board without the consent in writing of the Attorney-General.

38.—(1) For the purpose of executing constructing enlarging extending repairing cleansing emptying or examining any reservoir tank aqueduct line of pipes or other work for the time being belonging to the Board the Board may cause the water in any such work to be dis- Discharge of water into streams.

A.D. 1930. charged into any available stream watercourse or ditch
— Provided that any water so discharged shall be as free as
may be reasonably practicable from mud or silt or offen-
sive matter and from matter injurious to fish or spawn
or spawning beds or food of fish.

(2) In the exercise of the powers conferred by this
section the Board shall do as little damage as may be and
shall pay compensation to all persons for all damage
sustained by them by reason or in consequence of the
exercise of such power the amount of compensation to
be settled in case of difference by arbitration in accord-
ance with the provisions of the Arbitration Act 1889.

(3) The powers conferred by this section shall not
be exercised so as to damage or injuriously affect the
railways or works of any railway company.

Telephonic
wires and
apparatus
in streets.

39. Subject to the provisions of the Waterworks
Clauses Act 1847 with respect to the breaking up of
streets the Board may for the purposes of effecting
telegraphic or telephonic communication between to or
from the Board's works and offices lay down maintain
alter repair and renew mains tubes electric and other
wires and apparatus in the soil of any street road high-
way or footpath (a) within the urban districts of Kings-
bridge and Salcombe or (b) in which any mains pipes or
apparatus of the Board may be constructed or laid under
the powers of this Act.

For pro-
tection of
Postmaster-
General.

40. Any electric wires telegraphs telephones or
other apparatus or appliances laid down or maintained
by the Board under the provisions of this Act shall not be
used for the transmission of telegrams in contravention
of the exclusive privileges conferred upon the Post-
master-General by the Telegraph Act 1869 and shall be
so constructed maintained and used as to prevent inter-
ference with any telegraphic line (as defined by the
Telegraph Act 1878) belonging to or used by the Post-
master-General or with telegraphic communication by
means of any such telegraphic line.

Prevention
of
plumbism.

41. All water supplied by the Board under this
Act shall be properly and efficiently filtered or otherwise
treated so as to prevent it acting on lead in such manner
as to endanger the health of consumers and if the Board
make default under this section they shall be liable to a

penalty not exceeding ten pounds for every day during which such default shall continue. A.D. 1930.

42. For the protection of the Great Western Railway Company (hereinafter referred to as "the Great Western Company") the following provisions shall unless otherwise agreed in writing between the Great Western Company and the Board apply and have effect (that is to say):—

For protection of Great Western Railway Company.

(1) In constructing laying down and executing and also (except in cases of emergency) in effecting the repairs or renewals of any work of the Board by this Act authorised which may be situate upon across over under or in any way affecting the railway or works of the Great Western Company the same shall be done by and in all things at the expense of the Board except as in this section is otherwise provided and under the superintendence (if the same be given) and to the reasonable satisfaction of the engineer of the Great Western Company and at such time or times as he shall reasonably approve and so as not to interfere with the structure of any such railway and except in cases of repair according to plans sections and particulars to be submitted to and reasonably approved by the said engineer before any such works shall be executed Provided that if the said engineer shall not signify his approval or disapproval of such plans sections and particulars within twenty-eight days after they shall have been submitted to him he shall be deemed to have approved thereof:

(2) All such works shall be constructed executed and maintained so as not to cause any injury to the railway or works of the Great Western Company or any interruption to the passage or conduct of traffic over such railway and if any such injury or interruption shall arise from the acts or operations of the Board or by reason of the failure of the Board to maintain such works or if any bursting leakage or failure of the works of the Board under or near to any railway or works of the Great Western Com-

A.D. 1930.

pany shall cause any injury to such railway or works the Board shall make compensation to the Great Western Company for and in respect thereof :

(3) The Board shall not under the powers of this Act acquire compulsorily any lands of the Great Western Company :

(4) The Board or the constituent authorities (as the case may be) shall not without the previous consent of the Great Western Company exercise the powers conferred on them respectively by the sections of this Act of which the marginal notes are—

“ Telephonic wires and apparatus in streets ” ; or

“ Meters in streets to measure water or detect waste ” ;

in respect to any street which is the property of the Great Western Company but such consent shall not be unreasonably withheld :

(5) Any difference arising between the Board and the Great Western Company respecting any of the matters referred to in this section shall be referred to and determined by an arbitrator to be appointed (failing agreement) at the request of either party after notice in writing to the other by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 or any statutory re-enactment or modification thereof shall apply to any such reference and determination.

PART IV.

LANDS.

Power to
acquire
lands.

43. Subject to the provisions of this Act the Board may enter upon take appropriate and use all or any of the lands delineated on the deposited plans and described in the deposited book of reference which they may require for the purposes of this Act.

44. The quantity of land which may be taken by the Board from the common or commonable land known as Brent Moor in the parish of South Brent for the purposes of this Act shall not exceed six acres two roods thirty-two perches.

A.D. 1930.

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Limiting
quantity of
commonable
land to be
taken.

45. The powers of the Board for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the first day of October one thousand nine hundred and thirty.

Period for
compulsory
purchase
of lands.

46. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Board after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the county of Devon for the correction thereof and if it appear to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the clerk of the peace for such county and a duplicate thereof shall also be deposited with the clerk and also with the clerks of the councils of the parishes in which the lands affected are situate and such certificate and duplicate respectively shall be kept by such clerk of the peace clerk and clerks of the parish councils respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Board to take the lands and execute the works in accordance with such certificate.

Correction
of errors in
deposited
plans and
book of
reference.

47.—(1) The Board may in lieu of acquiring any lands for the purposes of the works authorised by this Act where the same are intended to be constructed underground acquire such easements in such lands as they may require for such purposes and may give notice to treat in respect of such easements describing the nature thereof and the provisions of the Lands Clauses Acts shall apply to and in respect of the acquisition of such easements as fully as if the same were lands within the meaning of such Acts.

Board may
acquire
easements
only in
certain
cases.

A.D. 1930.

(2) As regards any lands in respect of which the Board have acquired easements only under the provisions of this section the Board shall not be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall at all times after the completion of the works and subject to such easements have the same rights to use and cultivate the said lands as if this Act had not passed.

(3) Provided always that nothing in this section contained shall authorise the Board to acquire by compulsion any such easement in any case in which the owner in his particulars of claim shall require the Board to acquire the lands in respect of which they have given notice to treat for the acquisition of an easement only and every notice to treat for the acquisition of an easement only shall be endorsed with notice of this provision.

Compensation in case of recently acquired interest.

48. For the purpose of determining any question of disputed compensation payable in respect of lands taken under the powers of this Act the tribunal shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the land created after the first day of November nineteen hundred and twenty-nine if in the opinion of the tribunal the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

Power to Board to enter upon property for survey and valuation.

49. The Board and their surveyors officers and workmen and any person duly authorised in writing under the hand of the clerk may at all reasonable times upon giving in the first instance twenty-four hours' and subsequently twelve hours' previous notice in writing enter upon and into the lands and buildings by this Act authorised to be taken and used or any of them for the purpose of surveying and valuing the said lands and buildings without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands and buildings.

Costs of arbitration in certain cases.

50. The tribunal shall if so required by the Board award and declare whether a statement in writing of the amount of compensation claimed has been delivered to

the Board by the claimant giving sufficient particulars and in sufficient time to enable the Board to make a proper offer and if the tribunal shall be of opinion that no such statement giving sufficient particulars and in sufficient time shall have been delivered and that the Board have been prejudiced thereby the tribunal shall have power to decide whether the claimant's costs or any part thereof shall be borne by the claimant : A.D. 1930.
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Provided that it shall be lawful for any judge of the High Court to permit any claimant after seven days' notice to the Board to amend the statement in writing of the claim delivered by him to the Board in case of discovery of any error or mistake therein or for any other reasonable cause such error mistake or cause to be established to the satisfaction of the judge after hearing the Board if they object to the amendment and such amendment shall be subject to such terms enabling the Board to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and as to costs of the inquiry and otherwise as to such judge may seem just and proper under all the circumstances of the case :

Provided also that this section shall be applicable only in cases where the notice to treat under the Lands Clauses Consolidation Act 1845 either contained or was endorsed with a notice of the effect of this section.

51.—(1) For the purpose of protecting against pollution nuisance encroachment or injury any of the waters which the Board are empowered to take or which may flow into any waterworks of the Board the Board may by agreement purchase take on lease or acquire any lands and may hold such lands and any other lands which the Board may have acquired for the purposes of the undertaking so long as they shall deem it necessary or expedient for those purposes : Powers for protection of water supply.

Provided that the Board shall not create or permit the creation or continuance of any nuisance on any lands acquired under this section nor without the approval of the Minister of Health erect any buildings thereon except offices and dwellings for persons in their employment and such buildings and works as may be incident to or connected with the undertaking.

A.D. 1930.

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(2) The Board may in and upon the lands referred to in subsection (1) of this section construct and lay down drains sewers watercourses and other works and conveniences necessary or proper for the purpose of intercepting or taking all foul waters arising or flowing upon such lands or necessary or proper for preventing the waters which the Board are empowered to take from being polluted and the Board may for the purposes aforesaid carry any such drain sewer or watercourse under across or along any street or road traversing the said lands subject and according to the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes.

(3) The Board may make and carry into effect agreements with the owners lessees or occupiers of any lands with reference to the execution by the Board or such owners lessees or occupiers of such works as may be necessary for the purpose of draining such lands or any of them or for more effectually collecting conveying and preserving the purity of the waters which the Board are for the time being authorised to take.

Purchase of
additional
lands by
agreement.

52. The Board in addition to any other lands acquired by them in pursuance of this Act may by agreement purchase take on lease acquire and hold further lands for the purposes of the undertaking but (except with the consent of the Minister of Health) the quantity of lands held by the Board in pursuance of this section shall not at any time exceed ten acres. Provided that the Board shall not create or permit the creation or continuance of any nuisance on any such lands nor erect any buildings thereon except offices and dwellings for persons in their employment and such buildings and works as may be incident to or connected with the undertaking.

Persons
under
disability
may grant
easements
&c.

53. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Board any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such

grants and to such easements rights and privileges as A.D. 1930.
aforesaid respectively.

54. The Board on selling any lands acquired by them in connection with the undertaking and not required for that purpose may reserve to themselves all or any part of the water rights or other easements belonging thereto and may make the sale subject to such reservations accordingly and may also make any such sale subject to such other reservations special conditions restrictions and provisions with respect to the use of water exercise of noxious trades or discharge or deposit of manure sewage or other impure matter and otherwise as they may think fit.

Reservation
of water
rights &c.
on sale.

55.—(1) Notwithstanding anything in any other Act or Acts to the contrary the Board may retain hold and use for such time as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and in case of sale either in consideration of the execution of works or of a supply of water or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under this Act or any other Act or Order relating to the undertaking and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interests therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange :

Power to
retain sell
&c. lands.

Provided that the Board shall not without the consent of the Minister of Health sell lease exchange or otherwise dispose of any such lands or any interests therein at a price or rent or for a consideration of a value less than the current market value of such lands or interests but a purchaser or lessee shall not be concerned to inquire whether the consent of the Minister is necessary or has been obtained.

(2) Nothing in this section shall be taken to dispense with the necessity for obtaining the consent of any Government department to any sale lease appropriation

A.D. 1930. — or other disposition of any lands of the Board in any case in which such consent would be required if this Act had not been passed.

(3) Nothing in this section contained shall release the Board or any person purchasing or acquiring any lands from them under this section from any rents covenants restrictions reservations terms or conditions made payable by or contained in any conveyance lease or other deed or instrument by which any such lands were or may hereafter be conveyed or leased to or otherwise acquired by the Board or any person from or through whom the Board may have derived or may hereafter derive title to the same but all such rents covenants restrictions reservations terms and conditions shall remain and be of as full force and effect and may be recovered exercised enjoyed and enforced in like manner and to the same extent as if this Act had not been passed.

Proceeds
of sale of
surplus
lands.

56.—(1) So long as any lands remain to be acquired by the Board under the authority of this Act the Board may so far as they consider necessary apply any capital moneys received by them on the re-sale or exchange of or by leasing any lands acquired under the powers of this Act in the purchase of lands so remaining to be acquired but the Board shall apply any capital moneys so received and not applied as aforesaid in or towards the extinguishment of any loan raised by them under the powers of this Act and such application shall be in addition to and not in substitution for any other mode of extinguishment provided for by this Act except to such extent and upon such terms as may be approved by the Minister of Health.

(2) Provided that—

- (a) the amount to be applied in the purchase of lands under this section shall not exceed the amount for the time being unexhausted of the borrowing powers conferred by this Act;
- (b) the borrowing powers conferred by this Act shall be reduced to the extent of the amount applied in the purchase of lands under the provisions of this section.

(3) Subject as aforesaid any capital moneys received by the Board under the section of this Act of which the

marginal note is " Power to retain sell &c. lands " shall be applied in such manner as may be approved by the Minister of Health.

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PART V.

APPORTIONMENT AND SUPPLY OF WATER.

57.—(1) As soon as the Board are able to supply water to the constituent authorities from the works authorised by this Act each of the constituent authorities shall be entitled to such quantity of the water obtained by the Board as they may require. Provided that if there shall be insufficient water to meet the requirements of both constituent authorities the amounts to which each constituent authority shall be respectively entitled shall be in proportion to the amounts which the constituent authorities contribute to the annual expenditure (other than capital expenditure) of the Board under the provisions of the section of this Act of which the marginal note is " Expenditure of Board."

Apportionment of water.

(2) Unless otherwise agreed between the Board and the constituent authorities respectively the Board shall deliver into the existing service tank of the Salcombe Council near the junction of Kingsale Road and St. Dunstan's Road in the urban district of Salcombe the quantity of water to which the Salcombe Council are entitled under the provisions of this section and into the existing service tank of the Kingsbridge Council at West Alvington and into the existing line of pipes of the Kingsbridge Council at Bell Cross the quantity of water to which the Kingsbridge Council are entitled under such provisions and such respective quantities shall be measured by meters or other suitable instruments to be of such description and placed in such positions as may be agreed between the Board and the constituent authorities respectively or as may in default of agreement be determined by arbitration.

58. The Board may enter into and carry into effect agreements with any local authority company or person for the supply of water to such authority company or person respectively in bulk for any purpose and for such remuneration and on such terms and conditions and for such period as may be agreed upon. Provided that such supply shall not be given except with the consent of the

Contracts for supplying water in bulk.

A.D. 1930. local authority and of any company corporation or
— person supplying water under parliamentary authority
within the district to be supplied nor if and so long as
such supply would interfere with the supply of water
for domestic purposes within the districts of the con-
stituent authorities.

Supply of
water to
Totnes
Rural
District
Council.

59.—(1) If at any time within two years after the
passing of this Act the Totnes Rural District Council
(hereinafter called “ the council ”) shall by notice in
writing to the Board require a supply of water in bulk
not exceeding fifteen thousand gallons a day the Board
shall as from the date when they commence to supply
water by means of the works authorised by this Act
supply to the council and the council shall accept and
take such quantity of water as may have been demanded
in the notice not exceeding fifteen thousand gallons a
day and such supply shall be taken at a uniform rate
per day at such point on the conduit or line of pipes
(Work No. 2) and at such price and on such other terms
and conditions as may be agreed between the Board and
the council or as failing such agreement may be deter-
mined by arbitration under this section.

(2) All water taken from the conduit or line of pipes
(Work No. 2) shall be measured by a meter or other
apparatus to be provided by the council and approved by
the water engineer to the Board. Such meter shall be
placed in some suitable chamber or building to be pro-
vided by the council and such meter and all pipes valves
and other apparatus connecting it with the conduit or
line of pipes (Work No. 2) shall be fixed and constructed
by the Board at the cost of the council. The Board shall
at all reasonable times be at liberty after giving twenty-
four hours’ notice to the council to inspect such meter
and the works appertaining thereto and to test the
accuracy thereof and if necessary to require the same to
be repaired and maintained at the expense of the council.

(3) The Board shall not be liable for any damage
loss or expense caused by any failure in the supply of
water to the council if such failure shall be occasioned
by frost unusual drought or any cause beyond the control
of the Board or during any time when the works of the
Board shall be undergoing necessary repairs or cleansing
but no payment in respect of water under this section

shall be demanded by the Board during the period whilst such supply is suspended. A.D. 1930.

(4) All payments for the water supplied shall be made quarterly on the first day of January the first day of April the first day of July and the first day of October in every year.

(5) Any difference between the Board and the council under this section shall be settled by an arbitrator to be appointed by agreement or in default of agreement by the President of the Institution of Civil Engineers under and subject to the provisions of the Arbitration Act 1889.

(6) The Board and the Council may agree in writing for any variation or alteration in the provisions of this section.

PART VI.

SUPPLY OF WATER BY CONSTITUENT AUTHORITIES.

60. Subject to the provisions of this Act the provisions of the Public Health Acts shall apply to the supply of water by each of the constituent authorities within their respective districts. Supply of water by constituent authorities.

61. When the constituent authorities are in a position to supply water by means of the works by this Act authorised each constituent authority shall at the request of the owner or occupier of any dwelling-house or part of a dwelling-house entitled under the provisions of the Public Health Acts to demand from such authority a supply of water for domestic purposes furnish to such owner or occupier a sufficient supply of water for domestic purposes at a rate per annum not exceeding fifteen per centum upon the net annual value of the premises so supplied : Rates for supply of water for domestic purposes.

Provided that the constituent authority shall not be required to supply any premises with water at a less sum than fifteen shillings per annum.

The net annual value of any such premises as aforesaid shall be ascertained by the valuation list in force at the commencement of the quarter for which the rate accrues Provided that where the water rate is chargeable on the net annual value of a part only of any hereditament entered in the valuation list such net annual value shall be a fairly apportioned part of the net annual

A.D. 1930. — value of the whole hereditament ascertained as aforesaid the apportionment in case of dispute to be ascertained by a court of summary jurisdiction.

Supply of
water by
hose-pipe
to stables
&c.

62. When water of the constituent authority supplied for domestic purposes is used for washing horses carriages or motor cars or for other purposes in premises where horses carriages or motor cars are kept for private use the constituent authority may if a hose-pipe or other similar apparatus is used charge such additional sum not exceeding thirty shillings per annum (and where more motor cars than one are ordinarily kept a further sum not exceeding ten shillings per annum for each motor car beyond the first as the constituent authority may prescribe) and any sum charged under the provisions of this section shall be paid quarterly in advance and be recoverable in all respects with and as water rates.

Supply of
water to
houses
partly used
for trade
&c.

63.—(1) The constituent authority shall not be bound to supply with water otherwise than by measure (a) any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required or (b) any workhouse public institution hospital asylum (whether public or private) sanatorium school club hotel assembly hall restaurant public-house or inn or (c) any boarding-house capable of accommodating twenty or more persons including the persons usually resident therein.

(2) Where a supply of water to a farmhouse is used for farming purposes the constituent authority may require that the supply for farming purposes shall be taken by meter but nothing in this section shall authorise the constituent authority to refuse a supply of water for domestic purposes to a farmhouse at the rates authorised by this Act.

(3) The minimum quarterly charge for a supply of water by measure to any of the premises in this section mentioned shall be one-fourth of the annual amount which would be payable according to the scale for the time being in force for a domestic supply furnished to a dwelling-house of the same net annual value.

Rates
payable by
owners of
small
houses.

64.—(1) Where the net annual value of a house supplied with water does not exceed ten pounds or the house is let to monthly or weekly tenants or tenants hold-

ing for any other period less than a quarter of a year the owner instead of the occupier shall if the constituent authority so determine pay the rate for the supply but the rate may be recovered from the occupier and may if the occupier be not himself liable therefor under any lease or agreement be deducted by him from the rent from time to time due from him to the owner Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate. A.D. 1930.
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(2) The provisions of section 73 of the Waterworks Clauses Act 1847 shall mutatis mutandis extend and apply to any payments made under the provisions of this section by the owner of any house and as if such first-mentioned provisions applied in the case of any lease or agreement whether made before or after the passing of this Act.

65.—(1) If and so long as any direction given by a resolution of either of the constituent authorities passed under subsection (1) of section 11 (Rating of and collection of rates by owners) of the Rating and Valuation Act 1925 is in force in the constituent area of that authority the section of this Act of which the marginal note is “ Rates payable by owners of small houses ” shall cease to have effect in that constituent area and in lieu thereof the provisions of subsections (2) and (3) of this section shall have effect. Rates payable by owners in certain cases.

(2) With respect to every house or part of a house which is included in the class defined by the said resolution of the constituent authority and is supplied with water by the Board the owner instead of the occupier shall (if the Board so determine) pay the rate for the supply of water but the rate may be recovered from the occupier and may if the occupier be not himself liable therefor under any lease or agreement be deducted by him from the rent from time to time due to the owner Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to the service on him of a notice to pay the rate.

A.D. 1930.

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The provisions of this subsection shall be in addition to and not in derogation of the provisions of section 72 of the Waterworks Clauses Act 1847.

(3) The provisions of section 73 of the Waterworks Clauses Act 1847 shall *mutatis mutandis* extend and apply to any payments made under the provisions of subsection (2) of this section by the owner of any house or part of a house and as if such first-mentioned provisions applied in the case of any lease or agreement whether made before or after the passing of this Act.

Supply by
measure.

66. The constituent authority may supply water for other than domestic purposes on such terms and conditions as the constituent authority think fit and may supply water by measure either for domestic or other purposes and the moneys payable for the supply of water under this section shall be recoverable in the same manner as water rates. Provided always that no person shall be entitled to a supply of water for other than domestic purposes if such supply would interfere with the sufficiency of the supply of water for domestic purposes.

Price of
supply by
measure.

67. The price to be charged for a supply of water by measure shall not exceed two shillings and sixpence per thousand gallons. Provided that the constituent authority shall be entitled to charge for each such supply (other than a supply given under the section of this Act whereof the marginal note is "Supply of water to houses partly used for trade &c.") such minimum sum not exceeding fifteen shillings as they may prescribe in respect of the water supplied in any quarter of a year.

Charges for
supplies for
refrigerating
apparatus.

68. Where a person who takes a supply of water for domestic purposes from either of the constituent authorities desires to use for or in connection with a refrigerating apparatus any of the water so supplied the constituent authority shall be entitled to require that all water so used shall—

- (a) be taken by meter and paid for accordingly and in that event the minimum quarterly charge for the water shall be ten shillings; or
- (b) be paid for at such rates as may be agreed between the consumer and the constituent authority.

69.—(1) Notwithstanding anything in this or any other Act relating to the Board contained a person shall not be entitled to demand or continue to receive from the constituent authority a supply of water to any caravan shack hut tent or other like structure unless he has agreed with the constituent authority to take a supply of water by meter and to pay to the constituent authority such minimum annual sum as will give them a reasonable return on the capital expenditure incurred by them in providing the supply or supplies required by him and will cover other standing charges incurred by them in order to meet the possible maximum demand for his caravan shack hut tent or structure and will yield a reasonable return on the cost of the water consumed or used by him and unless he has secured to the reasonable satisfaction of the constituent authority by way of deposit or otherwise payment of such a sum as may be reasonable having regard to the possible maximum demand of such person for his caravan shack hut tent or structure.

A.D. 1930.
 —
 Special
 terms for
 supplies to
 caravans
 &c.

(2) The sum to be so paid and the security to be so given shall be determined in default of agreement by a court of summary jurisdiction who may also order by whom the costs of the proceedings before them shall be paid and the decision of the justices shall be final and binding on all parties.

70. The Minister of Health may if he thinks fit from time to time on the application of either of the constituent authorities or of twenty consumers of water within the district of the constituent authority by order vary either by way of increase or decrease the rates and charges for the supply of water which the constituent authority is by this Act authorised to charge and such order may provide for the alteration of the basis of such rates and charges:

Revision
 of water
 rates.

Provided that in the absence of exceptional reasons the Minister of Health shall not alter the maximum rates charges and prices at less intervals than every five years.

71. Notwithstanding anything in section 70 of the Waterworks Clauses Act 1847 the constituent authority may demand all rates rents and charges payable to them for the supply of water by half-yearly instalments in

Dates for
 payment
 of water
 rates.

A.D. 1930. advance on the first day of April and the first day of
— October in each year Provided that such rates rents and
charges shall not be recoverable until the expiration of
two months from the said first day of April and first
day of October respectively.

Discount
for prompt
payment
of water
rates.

72. The constituent authority may if they think
fit allow discounts or rebates to consumers of water in
consideration of prompt payment of rates for the supply
of water for domestic purposes not exceeding in any
case five per centum Provided that such discounts or
rebates shall be at the same rate under like circumstances
to all consumers Provided also that if and so long as
the constituent authority allow such discounts or rebates
notice of the effect of this enactment shall be endorsed
on every demand note for water rates.

Cisterns.

73. Each of the constituent authorities may require
that any dwelling-house erected after the passing of this
Act and situate on land at a higher level than fifty feet
below the service reservoir or tank from which a supply
of water is furnished by them to such dwelling-house
shall be provided with a cistern or cisterns capable of
containing a total quantity of water sufficient to provide
an adequate supply to such dwelling-house for a period
of forty-eight hours and the constituent authorities shall
not be bound to supply such dwelling-house until the same
is provided with a cistern or cisterns in conformity with
the requirements of this section.

Period of
error in
defective
meters.

74.—(1) In the event of any meter used by a con-
sumer of water being proved to register erroneously such
erroneous registration shall be deemed to have first arisen
during the then last preceding quarter of the year unless
it be proved to have first arisen during the then current
quarter.

(2) The amount of the allowance to be made to or
of the surcharge to be made upon the consumer by the
constituent authority shall be paid by or to the con-
stituent authority to or by the consumer as the case may
be and shall be recoverable in the like manner as charges
for water supplied by meter are recoverable by the con-
stituent authority.

75. The constituent authority may sell meters and any fittings connected therewith upon and subject to such terms (pecuniary or otherwise) and conditions as they think fit. A.D. 1930.
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 Power to sell meters.

76. Before any person connects or disconnects any meter by means of which any of the water of the constituent authority is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the constituent authority of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under the superintendence of any officer of or person authorised by the constituent authority and any person offending against this enactment shall for any such offence be liable to a penalty not exceeding forty shillings. Notice to constituent authority of connecting or disconnecting meters.

77.—(1) Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fittings belonging to the constituent authority or who fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the constituent authority shall (without prejudice to any other right or remedy for the protection of the constituent authority) be liable to a penalty not exceeding five pounds and the constituent authority may in addition thereto recover the amount of any damage by them sustained. Injuring meters &c.

(2) In any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any pipe meter instrument or fittings belonging to the constituent authority or has fraudulently altered the index to any meter or other instrument for measuring water or prevented the same from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used water of the constituent authority the constituent authority may enter upon the premises occupied by the offender and repair such injury and do all such works matters and things as may be necessary for insuring the proper registering by such meter of the quantity of water

A.D. 1930. — supplied by means thereof and the expense of such repair and of all such works matters and things shall be repaid to the constituent authority by the person so offending and may be recovered by them as water rates are recoverable.

(3) The existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the constituent authority when such pipe meter instrument or fittings is or are under the custody or control of the consumer shall be prima facie evidence that such injury alteration prevention abstraction consumption or use as the case may be has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fittings.

Power to
supply
water
fittings.

78.—(1) The constituent authority may if requested by any person supplied or about to be supplied by them with water furnish to him and repair or alter but shall not manufacture any such pipes valves cocks cisterns baths meters soil-pans waterclosets and other fittings as are required or permitted by their regulations and may provide all materials and execute all work necessary or proper in that behalf and the reasonable charges of the constituent authority in providing such materials and executing such work shall be paid by the person requiring the same.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the constituent authority as the actual owners thereof.

(3) Subject to the proviso to subsection (2) of this section all fittings let by the constituent authority on hire as aforesaid shall notwithstanding that they be fixed or fastened to any part of any premises in which they may be situate or to the soil under any premises at all times

continue to be the property of and removable by the constituent authority Provided that nothing in this subsection shall affect the amount of the assessment for rating of any premises upon which any such fittings are or shall be fixed. A.D. 1930.
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(4) Provided as follows:—

- (a) The constituent authority shall so adjust the charges to be made by them for any such fittings or for the fixing repairing or removal thereof as to meet any expenditure by them under the powers of this section in connection therewith (including interest upon any moneys borrowed for those purposes and all sums applied to sinking fund for repayment of moneys so borrowed);
- (b) When a demand note delivered by the constituent authority to a consumer includes a sum charged by the constituent authority in respect of providing such fittings or the repairing fixing or removal thereof such sum shall be clearly stated in such demand note;
- (c) The total sums expended and received by the constituent authority in connection with the purposes in this section mentioned in each year (including interest and sinking fund) shall be separately shown in the published accounts of the water undertaking for such year.

79. A notice to the constituent authority from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the constituent authority or be given by the consumer personally at the office of the constituent authority. Notice of discontinuance.

80.—(1) The constituent authority may make byelaws for the purpose of preventing the waste undue consumption misuse or contamination of water and may by such byelaws prescribe the size nature material workmanship and strength and the mode of arrangement Byelaws for preventing waste &c. of water.

A.D. 1930. connection disconnection alteration and repair of pipes
 — meters cocks ferrules valves soil-pans waterclosets baths
 cisterns and other apparatus (in this section referred to
 as "water fittings") to be used and forbid any arrange-
 ments and the use of any water fittings which may allow
 or tend to waste undue consumption misuse erroneous
 measurement or contamination.

(2) Such byelaws shall apply only in the case of
 premises to which the constituent authority afford or are
 prepared on demand to afford a constant supply and
 the provisions with respect to byelaws contained in
 sections 182 to 186 of the Public Health Act 1875 shall
 apply to all byelaws so made.

(3) In case of failure of any persons to observe such
 byelaws as are for the time being in force the constituent
 authority may if they think fit after twenty-four hours'
 notice in writing enter and by and under the direction
 of their duly authorised officer repair replace or alter any
 water fittings belonging to or used by such person and
 not being in accordance with the requirements of such
 byelaws and the expense of every such repair replace-
 ment or alteration shall be recoverable by the constituent
 authority as the water rates in respect of the premises
 are recoverable.

(4) In so far as any byelaws made by a constituent
 authority prescribe the size nature materials workman-
 ship and strength of water fittings the same shall not
 apply to water fittings used on any premises belonging to
 the Great Western Railway Company (other than
 premises to which the constituent authority are bound
 under the Waterworks Clauses Act 1847 to afford a
 supply of water for domestic use) so long as such fittings
 do not cause waste undue consumption misuse or con-
 tamination of water which is supplied by the constituent
 authority.

Meters in
 streets to
 measure
 water or
 detect
 waste.

81.—(1) Subject to the provisions of the Water-
 works Clauses Act 1847 with respect to the breaking up
 of streets for the purpose of laying pipes the constituent
 authority may for the purposes of measuring the quantity
 of water supplied or of preventing and detecting waste

affix and maintain meters and similar apparatus on the service pipes and mains of the constituent authority and stopcocks in the pipes supplying houses with water and may insert in the roads or footways the necessary covers or boxes for giving access and protection thereto and may for that purpose break up and interfere temporarily with public and private streets sewers gas air or water pipes electric lines wires and apparatus.

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(2) Provided that the constituent authority shall not interfere with any telegraphic line as defined by the Telegraph Act 1878 belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

82.—(1) The constituent authority shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water.

Separate communication pipes may be required.

(2) If the owner of any house supplied with water by the constituent authority when so required in pursuance of the preceding subsection fails within a period of one month after the receipt of such requirement to provide a separate pipe from the main pipe into such house the constituent authority may themselves do the work necessary in that behalf and may recover from such owner the cost incurred by them in so doing summarily as a civil debt.

83. Notwithstanding anything contained in any Act relating to the constituent authority the constituent authority shall have the exclusive right of executing any works on any of the water mains of the constituent authority for connecting any communication pipe therewith and the constituent authority shall on the request of any owner or occupier of any premises who is entitled to be supplied with water by the constituent authority execute on any such main any work which shall be necessary to connect the communication or service pipe of such owner or occupier therewith and any expenses incurred by the constituent authority in so doing shall be repaid by the owner or occupier so requesting and shall be recoverable as a civil debt.

Constituent authority to connect communication pipes with mains.

A.D. 1930.

Power to
 constituent
 authority to
 repair com-
 munication
 pipes.

84.—(1) If it should appear to the constituent authority that by reason of any injury to or defect in any communication pipe which the constituent authority are not under obligation to maintain there is any waste or risk of waste of water or injury or risk of injury to person or property it shall be lawful for the constituent authority to execute such repairs as they may think necessary or expedient in the circumstances of the case without being requested so to do and if any injury to or defect in the communication pipe shall have been ascertained the expense incurred by the constituent authority for the purposes of ascertaining the injury or defect and executing the repairs (including the expense of breaking up filling in reinstating and making good any road pavement or soil for those purposes) shall be recoverable by the constituent authority from the owner of the premises supplied or in cases where the communication pipe is repairable by the occupier of such premises from the occupier.

(2) Provided that except in case of emergency the constituent authority shall not under the powers of this section enter into any house or private premises unless they shall have given to the occupier of such house or premises and in any case where the communication pipe is repairable by the owner of such house or premises to such owner not less than twenty-four hours' previous notice of their intention so to enter.

Main-
 tenance of
 common
 pipe.

85. When several houses or parts of houses in the occupation of several persons are supplied with water by one common pipe belonging to the several owners or occupiers of such houses or parts of houses the said several owners or occupiers shall be liable to contribute the amount of any expenses from time to time incurred by the constituent authority in the maintenance and repair of such pipe and their respective proportions of contributions shall be settled by the waterworks engineer of the constituent authority or other officer duly authorised in that behalf by the constituent authority.

Opening of
 ground by
 person
 liable to
 maintain
 pipes &c.

86.—(1) For the purpose of complying with any obligation under the Waterworks Clauses Acts 1847 and 1863 to maintain any pipe or apparatus the person liable to maintain the same shall have the like power to open

the ground as is conferred upon him by and subject to the conditions of sections 48 to 52 of the Waterworks Clauses Act 1847 in relation to the laying of communication pipes.

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(2) The constituent authority may by agreement with any owner or occupier entitled or required to lay maintain repair or remove any communication pipe and for that purpose to open or break up any street execute such works on behalf of such owner or occupier and any expenses incurred by the constituent authority shall be repaid by the owner or occupier with whom the agreement is made.

87. The constituent authority by their agents or workmen after forty-eight hours' notice in writing under the hand of the waterworks engineer or some other officer of the constituent authority to the occupier or if there be no occupier then to the owner or lessee of any house building or land in which any pipe meter or fitting belonging to the constituent authority is laid or fixed and through or in which the supply of water is from any cause other than the default of the constituent authority discontinued for the space of forty-eight hours may enter such house building or land between the hours of nine in the morning and four in the afternoon or at any other time with the authority in writing of a justice for the purpose of removing and may remove every such pipe meter and fitting repairing all damage caused by such entry or removal.

Power to remove meters and fittings.

88. Every person who shall wilfully (without the consent of the constituent authority) or negligently close or shut off any valve cock or other work or apparatus belonging to the constituent authority whereby the supply of water shall be interfered with shall (without prejudice to any other right or remedy of the constituent authority) be liable on conviction to a penalty not exceeding five pounds and the constituent authority may in addition thereto recover the amount of any damage by them sustained Provided that this section shall not apply to a consumer closing a valve fixed on his communication pipe.

Penalty for closing valves and apparatus.

89. Any person being the owner or occupier of any house or building or part of a house or building or premises to or in respect of which he is not for the time

Penalty for interfering with valves &c.

A.D. 1930. — being entitled to a supply or the continuance of the supply of water by the constituent authority who shall without the authority of the constituent authority turn on any valve cock or other work or apparatus attached to any service main or pipe connected with any main of the constituent authority and provided or available for the purpose of affording such supply shall be deemed to commit an offence under section 60 of the Waterworks Clauses Act 1847 and the said section shall extend and apply accordingly.

Extension
of power
to inspect
premises.

90. In addition to the powers conferred by section 57 of the Waterworks Clauses Act 1847 any duly authorised officer of either of the constituent authorities may at all reasonable times between the hour of four o'clock in the afternoon and one hour after sunset enter into any house or premises supplied with water by either of the constituent authorities in order to examine if there be any waste or misuse of such water and if any person hinder any such officer from entering or making such examination as aforesaid he shall for every such offence be liable to a penalty not exceeding five pounds.

Restriction
on supply
in bulk by
constituent
authorities.

91. Neither of the constituent authorities shall without the consent of the other supply water obtained by them from the Board to any local authority company or person outside their respective districts.

PART VII.

FINANCIAL AND MISCELLANEOUS PROVISIONS.

Power to
borrow.

92.—(1) The Board may from time to time independently of any other borrowing power borrow at interest for and in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column of the said table and in order to secure the repayment of the said sums and the payment of interest thereon the Board may mortgage or charge the revenues of the Board and they shall pay off all moneys so borrowed within the respective periods (which for the purposes of this Act and of any enactment incorporated therewith or applied thereto shall respectively be "the prescribed period")

mentioned in the third column of the said table A.D. 1930.
(namely) :—

1	2	3
Purpose.	Amount.	Period for repayment.
(a) The purchase of lands and ease- ments for the works authorised by Part III (Waterworks) of this Act.	£ 3,000	Sixty years from the date or dates of borrowing.
(b) The construction of the works authorised by Part III (Waterworks) of this Act.	60,000	Fifty years from the date or dates of borrowing.
(c) Working capital - - - -	1,000	Ten years from the date or dates of borrowing.
(d) The payment of the costs charges and expenses of this Act.	The sum requisite	Five years from the passing of this Act.

- (2) (a) The Board may also with the consent of the Minister of Health borrow such further money as may be required for the purposes of the undertaking.
- (b) In order to secure the repayment of any money borrowed under this subsection and the payment of interest thereon the Board may mortgage or charge the revenues of the Board.
- (c) Any money borrowed under this subsection shall be repaid within such period (in this Act referred to as “ the prescribed period ”) as may be prescribed by the Minister of Health.

93.—(1) The Board may raise all or any moneys which they are authorised to borrow under this Act by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another or others and for the purpose of such issue under the Local Loans Act 1875 the Board shall be deemed a local authority under that Act and the revenues of the Board shall be deemed to be the local rate as defined by that Act Provided that in the case of any moneys borrowed under that Act the prescribed period for the repayment of the same shall be the period mentioned in respect of such moneys in the section of this Act of which the marginal note is “ Power to borrow ” :

Mode of
raising
money.

A.D. 1930.

— Provided further that the provisions of this Act in regard to sinking funds shall apply in substitution for the like provisions of the Local Loans Act 1875.

(2) The Board shall be deemed to be an urban authority within the meaning of Part V (Stock) of the Public Health Acts Amendment Act 1890 and to have adopted that Part of that Act and may exercise their borrowing powers by the creation and issue of stock in the manner by that Act provided and subject to the provisions therein contained. Provided that the Minister of Health may by order make all such variations additions amendments and adaptations of all or any of the provisions contained in the said Part of the said Act or in the regulations made thereunder as may be necessary to make the same applicable.

(3) All mortgages debentures annuity certificates and stock granted or issued by the Board under or by virtue of this Act shall rank equally without any priority or preference by reason of any precedence in the date of the granting or issue of the security or on any other account whatsoever.

Form of mortgage.

94. Every mortgage to be granted by the Board shall be by deed duly stamped in which the consideration shall be truly stated and may be in the form contained in the First Schedule to this Act or to the like effect.

Manner in which mortgages to be signed and executed.

95. Every mortgage to be granted by the Board may be partly in writing and partly in print and shall besides being under the common seal of the Board be signed by at least two members and the clerk or the treasurer of the Board. Provided that none of the said persons shall by his subscription to any such mortgage be or be held to have rendered himself individually or personally liable for the payment of any money so borrowed or any interest thereon or of any sums whatsoever in respect thereof.

Transfer of mortgages.

96. Any person entitled to any such mortgage may transfer his right and interest therein in whole or in part to any other person and every such transfer shall be by deed or by endorsement on the mortgage duly stamped wherein the consideration shall be truly stated and may be in the form contained in the First Schedule to this Act or to the like effect.

97. All mortgages granted by the Board under the authority of this Act and all money advanced or lent on the security of the revenues of the Board shall be moveable or personal estate and transmissible as such and shall not be of the nature of heritable or real estate.

A.D. 1930.

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Mortgages to be personal property.

98. If any mortgage granted by the Board under the authority of this Act be transmitted by reason of the bankruptcy of the person entitled thereto there shall be produced to the Board official evidence of such bankruptcy and of the vesting of the bankrupt estate in the trustee official assignee or other person to whom such estate shall be transferred.

Trans-
mission of mortgages in case of bankruptcy.

99. Any person entitled to any mortgage granted by the Board under the authority of this Act may discharge the same and his right and interest therein in favour of the Board by granting a receipt and every such receipt may be written or partly written and partly printed on the mortgage and may be according to the form contained in the Second Schedule to this Act or to the like effect and such receipt when signed by the person entitled to such mortgage and duly stamped shall be valid and effectual to all intents and purposes.

Discharge of mortgages.

100. All moneys borrowed by the Board shall be applied only to the purposes for which they are authorised to be borrowed and (except in the case of money borrowed for current expenses) to which capital is properly applicable. Provided that moneys which may have been borrowed in excess of the amount required shall be paid into the sinking fund or shall be applied in such manner as the Board with the approval of the Minister of Health determine.

Application of moneys borrowed.

101. The Board shall pay off all moneys borrowed by them under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by such instalments and partly by a sinking fund and the payment of the first instalment or the first payment to the sinking fund shall be made within one year or when the money is repaid by half-yearly instalments within six months of the date of borrowing. Provided that it shall not be obligatory on the Board to commence the repayment by sinking fund or otherwise

Mode of payment off of money borrowed.

A.D. 1930. of any moneys borrowed for the purposes (a) and (b)
— mentioned in the section of this Act the marginal note
whereof is “ Power to borrow ” until the thirty-first day
of March next after the completion of the works
authorised by this Act or until the expiration of five
years from the passing of this Act whichever shall first
happen.

Sinking
fund.

102.—(1) If the Board determine to repay by
means of a sinking fund any moneys borrowed by virtue
of this Act (except money borrowed by the issue of stock)
such sinking fund shall be formed and maintained
either—

(a) by payment to the fund throughout the pre-
scribed period of such equal annual sums as
will together amount to the moneys for the
repayment of which the sinking fund is formed
A sinking fund so formed is hereinafter called
a “ non-accumulating sinking fund ”; or

(b) by payment to the fund throughout the pre-
scribed period of such equal annual sums as
with accumulations at a rate not exceeding
three pounds ten shillings per centum per
annum or such other rate as the Minister of
Health may from time to time fix will be
sufficient to pay off within the prescribed period
the moneys for the repayment of which such
sinking fund is formed A sinking fund so
formed is hereinafter called an “ accumulating
sinking fund.”

(2) Every sum paid to a sinking fund and in the
case of an accumulating sinking fund the interest on the
investments of the sinking fund shall unless applied in
repayment of the loan in respect of which the sinking
fund is formed or in accordance with the provisions of
the section of this Act of which the marginal note is
“ Alternative application of sinking fund ” be imme-
diately invested in statutory securities the Board being
at liberty from time to time to vary and transpose such
investments.

(3) In the case of a non-accumulating sinking fund
the interest on the investments of the fund may be
applied by the Board towards the equal annual payments
to the fund.

(4) The Board may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Board shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

A.D. 1930.
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(5) (a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any deficiency shall be made good by the Board.

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any such excess may be applied towards such equal annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Board in addition to the payments provided for by this Act.

(7) If it appears to the Board at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Board to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Minister of Health that any such increase is necessary the Board shall increase the payments to such extent as the Minister of Health may direct.

A.D. 1930.

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(8) If the Board desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Minister of Health be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Board may reduce the payments to be made to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Minister of Health be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Minister of Health be sufficient to repay the loan in respect of which it is formed within the prescribed period the Board may with the consent of the said Minister discontinue the equal annual payments to such sinking fund until the said Minister shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose as the Board with the consent of the Minister of Health may determine.

Alternative
application
of sinking
fund.

103.—(1) Where the Board are authorised to borrow money for any purpose they may instead of borrowing by the issue of any fresh security in respect thereof use for such purpose wholly or partially any money for the time being forming part of any sinking fund and moneys so used shall for the purposes of this Act be deemed to be moneys borrowed by the Board Provided that the Board shall not use for such purpose any sinking fund which has been set aside in respect of any loan raised on mortgage and shown by the mortgage to have been raised in exercise of a particular borrowing power.

(2) The Board when exercising the powers conferred on them by this section shall— A.D. 1930.

(a) withdraw from the sinking fund a sum equal to the amount of the borrowing power proposed to be exercised by the user of moneys from such sinking fund;

(b) credit the sinking fund with the repayment of an amount of the principal moneys for the repayment of which the fund is established equal to the sum withdrawn from the sinking fund and thereupon the amount so credited shall be deemed to be principal moneys discharged by application of such sinking fund;

(c) debit the account of the borrowing power proposed to be exercised with an amount of the principal moneys equal to the sum withdrawn from the sinking fund and thereupon such borrowing power shall be deemed to have been exercised as fully as if the said amount had been raised by the issue of a fresh security and the provisions of this Act as to repayment and re-borrowing shall apply thereto accordingly.

(3) When any of the moneys are discharged by the application of any part of the sinking fund the moneys so discharged shall be deemed to be in respect of such one or more of the borrowing powers under which the moneys for the repayment of which the sinking fund is established were borrowed and if in respect of more than one in such proportions as the Board shall determine. Provided that the amount of the moneys deemed to be discharged in respect of any such borrowing power shall not exceed the amount of the contributions paid into the sinking fund in respect of that borrowing power and the accumulations (if any) thereon.

104. When under the provisions of this Act or of any other Act of Parliament or of any Order confirmed by or having the effect of an Act of Parliament the Board are empowered or required to form a sinking fund the following provisions shall have effect with respect to the appropriate yearly sums and to the accumulations thereof (if any) required to be set apart for or paid into such sinking fund for the purpose of providing for the repay-

Investment
of and
payments
into sinking
fund.

A.D. 1930. — ment of moneys borrowed by the Board The accumulations of the said yearly sums shall be paid and provided out of the revenues of the Board and any interest dividends and proceeds arising from the investment of the said yearly sums and the accumulations thereof shall be carried to and form part of the revenues of the Board.

Board may borrow temporarily for capital purposes.

105. The Board may temporarily until provision can be made for borrowing money on mortgage or by the issue of debentures annuity certificates or stock in manner before mentioned borrow any sum or sums from any bank or banking company or other company or person on security of the revenues of the Board and on such terms and conditions and in such form as may be agreed and any moneys so borrowed shall be subsequently repaid out of moneys duly borrowed on mortgage or by the issue of debentures annuity certificates or stock under the powers of this Act.

Protection of lender from inquiry.

106. A person lending money to the Board under this Act shall not be bound to inquire as to the observance by the Board of any provisions of this Act or to see to the application or be answerable for any loss misapplication or non-application of the money lent or any part thereof.

Board not to regard trusts.

107. The Board shall not be bound to see to the execution of any trust whether express implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages of the Board shall from time to time be a sufficient discharge to the Board in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Board have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered in their register.

Appointment of receiver.

108.—(1) The mortgagees of the Board by virtue of this Act may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom

the application for a receiver is made shall not be less than two thousand pounds in the whole. A.D. 1930.
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(2) The application for the appointment of a receiver shall be made to the High Court.

109.—(1) The Board shall have power—

Power to
re-borrow.

(a) to borrow for the purpose of paying off any moneys previously borrowed under this Act which are intended to be forthwith repaid; or

(b) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Board in repaying moneys previously borrowed under this Act and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Board shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Board shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(a) by instalments or annual payments; or

(b) by means of a sinking fund; or

(c) out of moneys derived from the sale of land; or

(d) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

110.—(1) Either constituent authority may with the consent of the Minister of Health lend to the Board any sum or sums on such terms and conditions and in such form as may be agreed between the Board and the constituent authority.

Power to
constituent
authorities
to lend
money to
Board.

A.D. 1930.

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(2) Either constituent authority may from time to time independently of any other borrowing power borrow at interest such sums as may be requisite for the purpose of providing any sum or sums which such constituent authority may with the consent of the Minister of Health lend to the Board under the provisions of this section.

(3) In order to secure the repayment of the money borrowed under this section and the payment of the interest thereon the Kingsbridge Council and the Salcombe Council may mortgage or charge the general fund and general rate of their respective districts.

(4) Either constituent authority may raise all or any moneys which they are authorised to borrow under this section either by mortgage or by issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in the other and the provisions of the Public Health Act 1875 relating to the borrowing and repayment of money (except subsections (1) (2) and (3) of section 234 of that Act) shall apply to all moneys borrowed by either constituent authority under this section.

(5) Section 77 (Return to Minister of Health with respect to repayment of debt) of this Act shall apply to either constituent authority borrowing money under the provisions of this section as though the constituent authority and the clerk to the constituent authority had been named therein instead of the Board and the clerk respectively.

Receipt in
case of
persons not
sui juris.

111. If any money is payable to a mortgagee or stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Board.

Interest on
securities
held
jointly.

112. Where more persons than one are registered as joint holders of any security of the Board any one of them may give an effectual receipt for any interest thereon unless notice to the contrary has been given to the Board by any other of them.

Evidence of
transfer or
transmission
of securities.

113. It shall not be obligatory on the Board to receive or register any transfer assignment certificate of death burial bankruptcy or marriage probate letters of

administration or other document evidencing a transmission of any authorised security (except securities issued under the Local Loans Act 1875 and securities to which regulations made under section 52 of the Public Health Acts Amendment Act 1890 apply) except upon the production to and temporary deposit with the clerk of the security or the certificate thereof for the purpose of the endorsement thereon of a memorandum of such transmission or the issue of a new security or certificate thereof and in case of the issue of a new security or certificate for the purpose of cancellation of the security or certificate so deposited.

A.D. 1930.
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114.—(1) The clerk shall if and when requested by the Minister of Health (in this section called “the Minister”) so to do transmit to the Minister a return showing the provision made for the repayment of any loans raised by the Board under any statutory borrowing power.

Return to
Minister of
Health with
respect to
repayment
of debt.

(2) The return shall show such particulars and shall be made up to such date and in such form as the Minister may require and shall if required by him be verified by statutory declaration of the clerk or other the chief accounting officer of the Board and shall be transmitted within one month after the making of the request and in the event of his failing to make such return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by the Minister in a court of summary jurisdiction and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(3) If it appears to the Minister by that return or otherwise that the Board have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Act or by the Minister in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than those authorised the Minister may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default shall have been made

A.D. 1930. shall be paid or applied as in such order mentioned and
— the Board shall notify the Minister as soon as the order
is complied with and any such order shall be enforce-
able by writ of mandamus to be obtained by the Minister
out of the High Court.

Expendi-
ture of
Board.

115.—(1) Before the commencement of every financial year or half-year as they may determine or as soon thereafter as may be practicable the Board shall ascertain and determine the amount of money required by them for all expenditure (other than capital expenditure) which will be incurred during the year or half-year as the case may be and shall apportion the same between the constituent authorities in accordance with the provisions of this section after allowing for any moneys to be received by the Board under the section of this Act whereof the marginal note is “ Contracts for supplying water in bulk.”

(2) Subject to any agreement which the constituent authorities may and which they are hereby empowered to make the expenditure of the Board (other than capital expenditure) for every year beginning on the first day of April shall be borne by the constituent authorities in the proportions following (that is to say):—

The Kingsbridge Council forty-five per centum of such expenditure; and

The Salcombe Council fifty-five per centum of such expenditure.

(3) The Board shall issue precepts to the constituent authorities for the amounts apportioned in pursuance of this section and the constituent authorities respectively shall within three months from the receipt of such precepts or by instalments of such amounts and payable within such times as may be specified in the precepts pay to the Board the amount so apportioned to them respectively.

(4) Such amounts respectively shall be raised and paid by the Kingsbridge Council and the Salcombe Council out of the revenues of their respective water undertakings or out of the general fund and general rate of their respective districts and the constituent authorities respectively are hereby authorised and required to make and levy any rate or issue any precept

that may be necessary for providing the amounts payable as aforesaid. A.D. 1930.

(5) If either of the constituent authorities fail to pay any amount so apportioned or as the case may be any instalment of such amount as may have been specified in any such precept within the time in which the same was payable the same shall be a debt due to the Board from such constituent authority and shall bear interest till payment at the rate of five per centum per annum and the Board may in addition to all other remedies proceed for recovery thereof in either of the modes following (that is to say):—

- (a) The Board may sue the defaulting constituent authority for the amount unpaid in any court of competent jurisdiction;
- (b) The Board may by precept empower some officer of the Board to raise by means of a rate to be assessed upon the like property and to be made levied and collected in like manner and with the like powers and authorities as the rate out of which the amount in arrear ought to have been paid by the defaulting constituent authority such sum (the amount to be specified in the precept) as in the opinion of the Board will be sufficient to pay the amount so in arrear and interest and all expenses incurred in consequence of the non-payment thereof and the expenses of levying and collecting such rate and any officer of the Board so empowered shall have the like powers of assessing making levying and collecting rates and of issuing precepts and of requiring officers of the defaulting constituent authority to account as the defaulting constituent authority would have under any Act or otherwise and the officer of the Board so empowered after paying all money payable under the precept shall pay any residue of the money received by him (the amount to be ascertained by the Board) to the defaulting constituent authority.

(6) Any receiver appointed under this Act upon the application of the mortgagees of the Board shall be entitled so long as his appointment remains to receive

A.D. 1930. — the amounts so apportioned by the Board between the constituent authorities and in case the Board at any time neglect or refuse to make such apportionment or to recover the same or any part thereof the receiver shall in every such case be entitled to make such apportionment and to exercise all or any of the powers by this section conferred on the Board for recovering the amounts so apportioned.

Application
of moneys
received by
Board.

116.—(1) All moneys received by the Board in respect of the undertaking except (a) borrowed money (b) money arising from the disposal of lands acquired for the purposes of this Act and (c) other capital money received by them in respect of the undertaking shall be applied by them in manner and in the order following (that is to say):—

First In payment of the working and establishment expenses and cost of maintenance of the undertaking including all costs expenses penalties and damages incurred or payable by the Board consequent upon any proceedings by or against them their officers clerks or servants in relation to the undertaking;

Secondly In payment of the interest on moneys borrowed by the Board under this Act;

Thirdly In providing the requisite appropriations instalments or sinking fund payments in respect of moneys borrowed by the Board under this Act;

Fourthly In payment of all other expenses of executing this Act not being expenses properly chargeable to capital;

Fifthly In providing a reserve fund (if the Board think fit) by setting aside such money as they think reasonable and investing the same in statutory securities until the fund amounts to a sum equal to ten per centum of the aggregate capital expenditure for the time being on the undertaking The reserve fund shall be applicable from time to time to meet any extraordinary claim or demand at any time arising against the Board in respect of the undertaking or for payment of the cost of renewing improving or extending any part of the works forming

part of or otherwise for the benefit of the undertaking and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so on as often as the reduction happens All interest received in any year from investments of any reserve fund so formed shall be carried to and shall form part of the revenue for that year of the Board and may be applied in payment of interest on loans of the Board but the reserve fund shall in that year be increased by a sum equal to the amount of such interest except to the extent that such increase would raise the reserve fund above the prescribed maximum Provided that resort may from time to time be had to the reserve fund for any of the purposes aforesaid although such fund may not at the time have reached or may have been reduced below the prescribed maximum.

A.D. 1930.

(2) All capital moneys received by the Board in respect of the undertaking shall be applied by them in the reduction of the capital moneys borrowed by them under this Act.

117. The accounts of the Board shall at all reasonable times be open to inspection and transcription without payment by any member or officer of either of the councils duly authorised in writing for that purpose.

Accounts to be open to inspection.

118. The provisions of section 58 of the Local Government Act 1894 shall apply to the accounts of the receipts and expenditure of the Board under this Act and of their committees and officers and to the audit thereof.

Audit.

119. Any notice to be served by the Board on a person supplied with water shall be sufficiently authenticated by the signature of the clerk or other officer of the Board for the time being authorised in writing by the Board being affixed thereto in writing or by a stamp or if it be a notice to pay any charge in respect of a supply of water by the name either of the clerk or such other officer as aforesaid being affixed thereto in print or by a stamp and any such notice may be served on such person either personally or by sending the same through the post by a prepaid letter addressed to him by name

Authenti- cation and service of notices by Board.

A.D. 1930. — at his last known or usual place of abode or business or by delivering the same to some inmate at his last known or usual place of abode or business or to any inmate of the premises supplied or if such premises be unoccupied and the place of abode of the person to be served is after proper inquiry unknown it shall in the case of any notice not being a notice to pay any charge be sufficient to affix such notice or a copy thereof upon some conspicuous part of such premises.

Extension
of sections
176 and 303
of Public
Health Act
1875 to
Board.

120.—(1) Sections 176 and 303 of the Public Health Act 1875 shall extend and apply to and the powers thereof may be exercised by the Board as if they were a local authority within the meaning of those sections and on the petition or application of the Board the Minister of Health may make such orders as he is by those sections empowered to make on the petition or application of a local authority.

(2) The provisions of this section shall be in addition to and not in derogation of any other powers conferred by this Act.

Incorporation
of sections
193 259
and 265 of
Public
Health
Act 1875.

121. Section 193 (Officers not to contract with local authority) of the Public Health Act 1875 as amended by section 2 of the Public Health (Members and Officers) Act 1885 and section 259 (Appearance of local authority in legal proceedings &c.) and section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 are hereby incorporated with this Act and shall extend and apply to the Board and the members officers and clerk of the Board as if the Board were a local authority within the meaning of such sections respectively and the purposes of this Act were purposes of the Public Health Act 1875.

Judges
not dis-
qualified.

122. A judge of a court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate.

Inquiries
by Minister
of Health.

123.—(1) The Minister of Health may direct any inquiries to be held by his inspectors which he may deem necessary in regard to the exercise of any powers conferred upon him or the giving of any consents under this Act and the inspectors of the Minister of Health shall for the purposes of any such inquiry have all such powers as they may have for the purposes of inquiries

directed by that Minister under the Public Health Act 1875. A.D. 1930.

(2) The Board shall pay to the Minister of Health any expenses incurred by him in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by the Minister of Health not exceeding five guineas a day for the services of such inspector.

124.—(1) The Board shall have power to promote or oppose any Bill in Parliament or any Provisional Order or Special Order. Power to
apply for
further
powers &c.

(2) The Board may pay the costs and expenses of and incidental to the promotion of or opposition to any such Bill in Parliament or the promotion of or opposition to any such Provisional Order or Special Order as taxed by the taxing officer of the House of Lords or of the House of Commons out of their revenues as part of their working expenses Provided that—

- (a) no expenses in relation to the promotion of any such Bill shall be paid as aforesaid unless incurred in pursuance of a resolution passed at a meeting of the Board by an absolute majority of the whole number of the Board after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in a newspaper circulating in the district in which the works of the Board are situate such notice to be in addition to the ordinary notices required for summoning such meeting;
- (b) no further expenses shall be incurred or paid as aforesaid after the deposit of the Bill unless the propriety of the promotion of the Bill shall be confirmed by such absolute majority at a further meeting of the Board to be held in pursuance of a similar notice not less than fourteen days after the deposit of the Bill in Parliament and unless in the case of the promotion of a Bill the propriety of such promotion shall have received the approval of the Minister of Health.

A.D. 1930.

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Powers of
Act cumu-
lative.

125. All powers conferred by this Act shall be deemed to be in addition to and not in derogation of any other powers conferred on the constituent authorities respectively by the Public Health Acts and such other powers may be exercised in the same manner as if this Act had not been passed. Provided that no person shall incur more than one penalty (other than a daily penalty for a continuing offence) for the commission of the same offence and provided that in cases where the provisions of this Act conflict with the provisions of the Public Health Acts the former shall prevail.

Costs of
Act.

126. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto shall be taxed by the taxing officer of the House of Lords or of the House of Commons and such costs charges and expenses shall in the first instance be paid by the councils but shall be repaid to the councils by the Board out of the moneys to be borrowed by them under the powers of this Act.

The SCHEDULES referred to in the
foregoing Act.

A.D. 1930.
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FIRST SCHEDULE.

FORM OF MORTGAGE.

KINGSBRIDGE AND SALCOMBE WATER BOARD.

By virtue of the Kingsbridge and Salcombe Water Board Act 1930 and of other their powers in that behalf them enabling the Kingsbridge and Salcombe Water Board (hereinafter referred to as "the Board") in consideration of the sum of pounds paid to the treasurer of the Board by

(hereinafter referred to as "the mortgagee") do hereby grant and assign unto the mortgagee [his] executors administrators and assigns such proportion of the revenues of the Board in the said Act defined as the said sum so paid doth or shall bear to the whole sum which is or shall be charged on the said revenues To hold unto the mortgagee [his] executors administrators and assigns from the day of the date of these presents until the said sum shall be fully paid and satisfied with interest for the same (subject as hereinafter provided) at the rate of _____ per centum per annum from the

_____ day of _____ one thousand nine hundred and _____ until payment of the said sum such interest to be paid half-yearly on the _____ day of _____ and the _____ day of _____

in each year And it is hereby agreed that the said sum of _____ pounds shall be repaid at the offices of the Board (subject as hereinafter provided) on the _____ day of _____ one thousand nine hundred and _____

[by _____]:

Provided always and it is hereby agreed and declared that the before-mentioned time for repayment may be extended to such subsequent day or days and upon any such extension the before-mentioned rate of interest may be altered to such other rate or rates of interest as shall from time to time be agreed

upon between the Board and the mortgagee and mentioned in an endorsement to be made hereon under the hand of the chairman and clerk of the Board for the time being respectively and that upon any such endorsement being made whether relating to extension of time only or to extension of time with alteration of rate of interest the provisions thereof shall be incorporated herewith and shall operate and take effect as though they had been originally inserted herein.

In witness whereof the Board have caused their common seal to be hereunto affixed this day of
one thousand nine hundred and .

THE ENDORSEMENT WITHIN REFERRED TO.

The within-named _____ consenting the within-mentioned time for repayment of the within-mentioned principal sum of _____ is hereby extended to the _____ day of _____ nineteen hundred and _____ [and the interest to be paid thereon on and from the _____ day of _____ nineteen hundred and _____ is hereby declared to be at the rate of _____ per centum per annum].

Dated this day of nineteen hundred
and ,

FORM OF TRANSFER OF MORTGAGE.

I [the within-mentioned] of
in consideration of the sum of pounds paid
to me by of (hereinafter
referred to as " the transferee ") do hereby transfer to the trans-
feree [his] executors administrators and assigns [the within-
written security]. [the mortgage number of the
revenues of the Kingsbridge and Salcombe Water Board bearing
date the day of] and all
my right and interest under the same subject to the several
conditions on which I hold the same at the time of the execution
hereof and I the transferee for myself my executors administrators
and assigns do hereby agree to take the said mortgage security
subject to the same conditions.

Dated this _____ day of _____
 nineteen hundred and _____.

SECOND SCHEDULE.

A.D. 1930.

FORM OF RECEIPT.

Received from the treasurer to the Kingsbridge and Salcombe Water Board acting on their behalf the sum of being the principal sum contained in the within mortgage (all interest due thereon having been previously paid) and the said mortgage is now delivered up.

Dated this day of nineteen
hundred and .

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